

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

6. M-CV-0096406 AJIT KUMAR, TRUSTEE v. MENDOZA, LAWRENCE

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on June 18, 2026, at 8:30 a.m. in Department 40.

Defendant's Motion to Set Aside Judgment, Recall or Quash Writ of Possession, and Reset Trial Date

Defendant moves to set aside the judgment entered against him on May 19, 2026, after he did not appear for the court trial. Code of Civil Procedure section 473, subdivision (b) provides "the court may . . . relieve a party . . . from a judgment . . . taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Defendant, as the moving party, bears the burden to show good cause entitling him to relief. (*Davis v. Thayer* (1980) 113 Cal.App.3d 892, 904.)

Here, defendant has not met his burden. Defendant's declaration does not establish he exercised reasonable diligence, explain whether his medical conditions were severe enough to limit his ability to check his mail or attend and participate at trial or that all of his time was devoted to his personal and familial affairs that he was not able to check his mail or attend and participate at trial.

Accordingly, defendant's motion is denied.

7. M-CV-96410 LHE WOODCREEK v. TORRANCE, DEBORAH

The demurrer is continued to **June 25, 2026, at 8:30 a.m. in Department 3.**

8. S-CV-0040220 MURPHY, ANNA v. SMITH, CHARLEY

Defendant's Motion for Writ of Possession for Real Property Located at 6010 and 6020 McCourtney Road, Lincoln, CA

Defendant moves for the court to issue a writ of possession for real property pursuant to Code of Civil Procedure section 715.010.

Code of Civil Procedure section 715.010, subdivision (a) provides: "A judgment for possession of real property may be enforced by a writ of possession of real property issued pursuant to Section 712.010." (Code Civ. Proc., § 715.010, subd. (a).) Here,